

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Laura Strauss	Team: Squad #06	CCRB Case #: 201810650	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 12/14/2018 5:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/29/2021	Precinct: 61
Date/Time CV Reported Fri, 12/14/2018 7:22 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/24/2018 10:45 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Josue Sanchez	01551	965858	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Tzu Cheung	02790	932458	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Josue Sanchez	Abuse: Police Officer Josue Sanchez threatened to arrest § 87(2)(b)	A . Unsubstantiated

Case Summary

On December 14, 2018, § 87(2)(b) filed this complaint over the phone with the NYPD's Internal Affairs Bureau, under original log number 18-49007. On December 24, 2018, the CCRB received this complaint from IAB.

On December 14, 2018, at approximately 5:15 p.m., Police Officer Josue Sanchez and Police Officer Tzu Cheung, both of the 61st Precinct, responded to a 911 call made by § 87(2)(b) about a dispute with § 87(2)(b), the owner of § 87(2)(b) in Brooklyn. When § 87(2)(b) asked PO Sanchez and PO Cheung to arrest § 87(2)(b) PO Sanchez allegedly threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority, unsubstantiated**). No arrest or summonses resulted from this incident.

There was no video footage obtained of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Josue Sanchez threatened to arrest § 87(2)(b)

According to the Event Information Sheet (Board Review 07), § 87(2)(b) called 911 and stated that § 87(2)(b) threatened him because he returned a purchase costing \$700.

§ 87(2)(b) testified (Board Review 01) that he asked PO Sanchez and PO Cheung to arrest § 87(2)(b) for making verbal threats. PO Sanchez then stated, "If we lock him up, we'll lock you up too." This conversation occurred in an enclosed foyer away from § 87(2)(b).

PO Sanchez testified (Board Review 02) that after § 87(2)(b) asked him and PO Cheung to arrest § 87(2)(b) he explained that an arrest would only be made if the fight between § 87(2)(b) and § 87(2)(b) escalated. PO Sanchez further testified that neither he nor PO Cheung threatened in any way to arrest § 87(2)(b).

PO Cheung testified (Board Review 03) that after § 87(2)(b) asked him to arrest § 87(2)(b) he stated that an officer must witness harassment for an arrest to be effected. PO Cheung further testified that neither he nor PO Sanchez threatened in any way to arrest § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint and has been named as a victim in one allegation (Board Review 04).
 - § 87(2)(b)
- PO Sanchez has been a member of service for 10 months and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 22, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 05).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date